

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1396

By: Provenzano

AS INTRODUCED

An Act relating to schools; prohibiting private schools from requiring a parent or guardian to participate in the Oklahoma Parental Choice Tax Credit; banning certain tuition rate or fee increases; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 28-104 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. Private schools accredited by the State Board of Education or another accrediting association shall not, as a condition of acceptance, enrollment, or student eligibility, require that a student's parent or guardian participate in the Oklahoma Parental Choice Tax Credit Program created in Section 28-101 of Title 70 of the Oklahoma Statutes.

B. Private schools that accept students whose parents or guardians receive an income tax credit through the Oklahoma Parental

1 Choice Tax Credit Program shall not increase their tuition rates or
2 fees as a result of the Oklahoma Parental Choice Tax Credit Program.

3 SECTION 2. This act shall become effective July 1, 2025.

4 SECTION 3. It being immediately necessary for the preservation
5 of the public peace, health or safety, an emergency is hereby
6 declared to exist, by reason whereof this act shall take effect and
7 be in full force from and after its passage and approval.

8

9 60-1-11247 AO 12/31/24

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24